

## **Attachment to the Email Sent to the BOT prior to the 9.17.2026 BOT meeting from David and Robin McFadden**

Questions for the September 17, 2026 Board of Trustees Meeting

Suggested opening

For months, Robin and I have submitted detailed written requests and supporting documents concerning this proposal. We asked you to identify the problem, explain the law's actual scope, disclose the factual and drafting record, respond to our FOIL requests, and provide the August 20 meeting recording.

You have not substantively answered us. Yet you continue advancing the proposal. Tonight, before you continue discussing restrictions on our property, answer the questions you have avoided.

The Police Department has now stated in writing that, after its search, it could not find responsive records concerning my boathouse or the single six-hour photoshoot. The request covered calls for service, complaint logs, incident reports, officer notes, warnings, summonses, citations, and written dispositions. The Department also found no responsive communications concerning alleged noise, traffic, parking, safety, privacy, or neighborhood-tranquility effects, and no Police Department analysis identifying a broader public-safety or quality-of-life problem.

Primary question

Why is this Board advancing a law directed at our property while refusing to answer our questions, produce the relevant public records, or provide the recording of the meeting where you discussed it?

Board nonresponse and accountability

1. Did each of you read our submissions? I want a yes-or-no answer from every Trustee. Did you read the executive summary, public comments, affected-boathouse analysis, dock correspondence, FOIL correspondence, and Police Department determination before continuing this discussion?
2. Why have you not answered us? Name one substantive written response the Board provided to our questions. Give us the date and the document. If there is none, say so.
3. Who decided that our questions did not deserve answers? Was that the Mayor, the Trustees, Village counsel, or nobody because the Board never assigned responsibility? Name the person responsible.

4. Why are you proceeding as if our submissions do not exist? Do you believe you can accept evidence, ignore it, refuse to answer direct questions, and then legislate as though no objections were raised?

5. Is the outcome already decided? If nothing we submit will change your position, say that now. If the outcome is not predetermined, identify one issue you are still genuinely considering.

6. Why did the Village miss its own FOIL deadline? The Village gave itself 20 business days. That period expired around September 2 without records, a denial, an explanation, or a new date. Who was responsible for missing that deadline?

7. Do you dispute the independent FOIL assessment? Axel Ebermann of the New York Coalition for Open Government wrote that the Village was "past its deadline on both requests." Do you dispute that, yes or no? If yes, give the dates and legal authority supporting your answer.

8. Why did we have to appeal before receiving the Police Department records? The determination is dated September 15, and we received it September 16, after filing the appeal. Why was the request not acknowledged or answered within the original deadline?

9. Where are the administrative FOIL records? The request seeks the proposal's origin, drafts, complaints, communications, enforcement history, and factual basis. Where are those records? Give us a production date, not another vague promise.

10. Why are you withholding records that could be released now? Axel Ebermann recommended rolling production. Why have you not released recent drafts, complaints, emails, and communications while any older search continues?

11. Who is accountable for the FOIL appeal? Name the appeals officer or body, confirm the receipt date, and state the deadline for the written decision. Was the appeal forwarded to the Committee on Open Government as required, yes or no?

12. Why did you refuse my request for the August 20 recording? Tonight is a continuation of that discussion, but residents cannot review it. What exactly are you refusing to release, who made that decision, and what legal basis are you relying on?

13. Does the recording exist, yes or no? Who has it? When will it be released? If it was deleted, lost, or destroyed, identify when, by whom, and under what records-retention authority.

14. Why should this discussion continue while you deny access to the prior discussion? How can residents challenge your statements if you refuse to let them hear what was said on August 20?

15. Will each Trustee answer, or will you remain silent again? These questions concern your individual votes. I want each Trustee's answer, not a single response from the Mayor or Village counsel.

16. Will you finally account for every unanswered request? Publish a list of our requests, identify the responsible official, and mark each one answered, pending, or denied. Will you do that, yes or no?

#### Questions about the proposal itself

1. Where is the evidence that this law is needed? Apart from a neighbor seeing a photoshoot listing, identify one complaint, incident, enforcement record, expert recommendation, or measurable harm supporting this proposal.

2. Mayor, why do you keep calling this "renting boathouses" when you already admitted it is about photoshoots on my dock? You know there was no lodging, tenancy, overnight occupancy, or surrender of possession. Why are you continuing to give residents a description that hides the actual trigger and broader reach of this proposal?

3. What existing law has failed? Unauthorized residential and overnight boathouse use is already prohibited. Identify the enforcement gap that requires another law.

4. Will you correct the misleading public description, yes or no? The draft reaches docks, guests, independent uses, ownership arrangements, and broadly defined compensation. Will you stop presenting it as merely a ban on renting boathouses?

5. Does this law cover every waterfront dock, yes or no? The draft defines a dock as an accessory building. Does it apply on all three Village lakes, including the Village Boat Club and properties without boathouses?

6. Did you study the properties before proposing restrictions on them? The record identifies eight separately assessed boathouses. Did the Village verify each parcel's history, zoning, certificate of occupancy, and lawful uses, yes or no?

7. Why are you regulating money instead of harm? If an activity causes no noise, traffic, parking, safety, or municipal burden, why should it become illegal merely because someone is paid?

8. Why are you counting opposition to Airbnb rentals as support for this broader law? Did every person who commented receive the actual draft and understand that it reaches docks, daytime activity, guests, gifts, services, and compensation? If not, why are you treating those comments as informed support?

9. What makes Tuxedo Park so different that objective rules will not work here? Peer New York communities use permits, thresholds, parking rules, insurance, notice, and cost recovery. Identify the local facts that require a harsher rule.

10. Why are you refusing a low-impact safe harbor? Why not regulate actual hours, people, vehicles, parking, noise, and public-service demands instead of prohibiting quiet conduct that harms nobody?

11. How is anyone supposed to know what violates this law? Give a clear rule that lets an owner determine whether a guest, gift, contractor, caregiver, social-media post, real-estate photograph, charity event, or private gathering is prohibited.

12. Why should one \$200 photoshoot reduce everyone else's property rights? The Police Department found no record connecting my photoshoot to a disturbance or demand on police resources. What justifies burdening eight boathouses and potentially every waterfront dock?

13. Before voting, will each Trustee justify this law personally? Identify the documented harm, the failure of existing law, and the reason narrower rules will not work. If you cannot do that, why are you voting for it?

Short version if speaking time is limited

1. For months, Robin and I have submitted detailed written requests concerning the origin, factual basis, scope, enforcement, and effect of this proposal. Why has the Board continued advancing it without providing substantive responses?
2. Has each Trustee read our submissions? Please identify which of our requests the Board answered, when it answered them, and why the remaining requests have gone unanswered.
3. The Village's August 5 acknowledgment said the administrative FOIL would be granted or denied within 20 business days. That period expired around September 2 without records, a denial, a written explanation, or a new date. Axel Ebermann of the New York Coalition for Open Government then wrote that the Village was past its deadline on both requests. Does the Board dispute that conclusion, and where is the administrative production concerning the proposal's origin, drafting history, complaints, and enforcement record?
4. Why has the Village not followed the recommendation to produce readily available records on a rolling basis? Who is deciding the administrative appeal, and when will a written determination and the responsive records be issued?
5. Why was my request for the August 20 recording or a direct public link refused? Does the recording exist, who controls it, and what factual and legal basis is being asserted for withholding it?
6. Mayor, at the August 20 meeting you established on the record that this proposal arose because a neighbor saw that my boathouse was listed for

photoshoots. You know the single photoshoot took place on my dock and involved no lodging, tenancy, overnight occupancy, or surrender of possession. Why do you continue telling residents that this is a discussion about “renting boathouses” instead of accurately stating that it concerns photoshoots and other compensated daytime activity on my private dock?

7. The Police Department finally reported that it could not find any responsive complaint, call for service, incident report, warning, citation, or related communication concerning my boathouse or the photoshoot. Given that finding, the outstanding administrative records, the missing meeting recording, and the Board’s failure to answer our submissions, how can tonight’s continuation fairly proceed toward any vote?
8. If the answer is only “this is about rentals”
9. Respectfully, that does not answer the question. The August 19 draft reportedly reaches more than residential occupancy or surrender of possession. Please answer whether it applies to docks, owner-supervised daytime activity, guests, gifts, services, and other compensated activity that involves no lodging.

#### Closing position

I support enforcing the existing prohibition on unauthorized residential and overnight use. I do not support a broad new restriction aimed at peaceful private-property activity when the Police Department located no corresponding complaint or incident record, the affected class has not been fully studied, and objective, less burdensome alternatives are available.

#### Source basis from Tuxedo Park Rights

These questions are derived from the documents published in the Tuxedo Park Rights public record:

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- [Notice of Overdue FOIL Responses and Request to Preserve the Public Record](#)
- [New York Coalition for Open Government Response on FOIL Deadlines](#)
- [Administrative Appeal of Two Constructive FOIL Denials](#)
- [Police Department FOIL Response and Summary](#)
- [Official Police Department FOIL Determination](#)
- [Request for the August 20 Meeting Recording](#)
- [Follow-Up: Proposed Law Also Reaches Waterfront Docks](#)

- [Affected Boathouses and Docks](#)
- [Executive Summary](#)